

26SMCV04068 26SMCV04068

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TENTATIVE RULING

September 3, 2026

26SMCV04068 (Camden 1, LLC, et. al.

v. L.B. Bussell, M.D., Inc.)

RELEVANT BACKGROUND

On July 23, 2026,

plaintiffs Camden 1, LLC ; Camden 2, LLC ; Camden 3, LLC ;Camden 4, LLC ;

Camden 5, LLC (Plaintiffs) filed their complaint against defendant L.B.

Bussell, M.D., Inc., dba Beverly Hills Dermatology Consultants (Defendant).

On August 27, 2026,

Plaintiffs filed a proof of service by substituted service.

INSTANT MOTION

On August 18 and 20, 2026, Defendant filed the

instant motion to quash service of summons. Plaintiff filed an opposition. No

reply has been filed.

DISCUSSION

A limited liability

company may be served in a number of manners, including: (a) In addition to

Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of

Civil Procedure, process may be served upon limited liability companies and foreign limited liability companies as provided in this section. (b) Personal service of a copy of any process against the limited liability company or the foreign limited liability company by delivery (1) to any individual designated by it as agent, or (2) if the designated agent is a corporation, to any person named in the latest certificate of the corporate agent filed pursuant to Section 1505 at the office of the corporate agent, shall constitute valid service on the limited liability company or the foreign limited liability company. (Corp. Code, § 17701.16)

“In lieu of personal

delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing. [emphasis added]” (Code Civ. Proc., § 415.20.)

The Court finds that the evidence is sufficient to support a finding that Defendant was properly served with the summons and complaint by substituted service. Plaintiffs have presented a valid proof of service from a registered process server indicating that the summons and complaint were left with a receptionist at Defendant's office, Ana Vega, and subsequently mailed to Defendant's office in compliance with Code of Civil Procedure section 415.20. (Code Civ. Proc., § 415.20; see, e.g., *Ludka v. Memory Magnetics International* (1972) 25 Cal.App.3d 316 [summons and complaint left with receptionist in common area found sufficient within the meaning of section 415.20]; *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387 [summons and complaint left with gate guard found sufficient within the meaning of section 415.20].) The proof of service is entitled to a presumption of validity pursuant to Evidence Code section 647. (Evid. Code, § 647.) Defendant has failed to adequately contradict the declaration by the process server that the person served, Ms. Vega, was a person apparently in charge.

Notably, Ms. Vega

concedes in her declaration that she is employed by Defendant and is “aware of all mail received by my office.” (Vega Decl. ¶ 7.) Lastly, the Court notes that the case relied upon by Defendant, *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, is not applicable here, because it involved service by mail on an out-of-state corporation.

Accordingly, Defendant’s motion to quash is DENIED. Defendant may have thirty (30) days in which to respond to the complaint.